

Court No. - 3

Case :- WRIT - C No. - 21379 of 2022

Petitioner :- Ravishanker Verma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Kumar Chaurasia

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Chetan Chatterjee, learned counsel for the respondent nos. 2 to 4.

2. This writ petition has been filed praying for the following reliefs :

"(i) issue a writ, order or direction in nature of certiorari quashing the impugned recovery certificate dated 05.08.2021 issued by the respondent no. 4 (Annexure No. 3 to the writ petition).

(ii) issue a writ, order or direction in nature of mandamus directing and commanding the respondents to calculate the actual meter reading from electricity meter and prepared the electricity bill after deduction of deposited bill by the petitioner and balance amount of electricity bill may be accepted in 16 easy installments;

(iii) issue a writ, order or directing in the nature of mandamus directing and commanding the respondent to provide 45 H.P. electricity load to the factory of petitioner and connect the electricity to the factory of petitioner;."

3. Learned counsel for the respondent nos. 2 to 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.4 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 1.8.2022

A. V. Singh